

Court No. - 39

Case :- WRIT - C No. - 39866 of 2014

Petitioner :- M/S G.B.A. Steels & Metals Pvt. Ltd.

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Baleshwar Chaturvedi, A.N. Singh

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Connect and list with Writ Petition (C) No. 51844 of 2009.

Heard learned counsel for the petitioner as well as Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 1 and 2.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 17.07.2014 issued by the respondent No. 2, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioner also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 4.8.2014

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Hon'ble Dilip Gupta, J.

Hon'ble Jayant Banerji, J.

The petitioner has sought to challenge the notice dated 17 July 2014, demanding the additional security.

Learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel appearing for the respondents have fairly stated that the controversy stands decided against the petitioner in **Writ-C No.- 30898 of 2016 (M/S Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & 3 Others)** on 21 March 2017.

The aforesaid writ petition was dismissed as the challenge made to the provision of Clause 4.20 of the Electricity Supply Code, 2005 for demand of additional security was found to have no merit.

The writ petition is, accordingly, dismissed. Interim order, if any, stands vacated.

Order Date :- 3.10.2017

A. V. Singh

(Dilip Gupta, J.)

(Jayant Banerji, J.)